

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                |                                     |                                                        |                                    |                                 |
|---------------------------------------------------|----------------------------------------------------------------|-------------------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Francesca Chery                  | Team:<br>Squad #14                                             | CCRB Case #:<br>202008136           | <input checked="" type="checkbox"/> Force              | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                |                                     | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 12/12/2020 8:00 PM  | Location of Incident:<br>Leggett Avenue and Bruckner Boulevard | Precinct:<br>41                     | 18 Mo. SOL<br>6/12/2022                                | EO SOL<br>6/12/2022                |                                 |
| Date/Time CV Reported<br>Sat, 12/12/2020 11:36 PM | CV Reported At:<br>CCRB                                        | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Sat, 12/12/2020 11:36 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s) | Shield | TaxID  | Command |
|--------------------|--------|--------|---------|
| 1. POM Abel Dupres | 13626  | 963498 | 041 PCT |
| 2. POM Joel Feliz  | 24505  | 962401 | 041 PCT |

| Officer(s)           | Allegation                                                                                 | Investigator Recommendation |
|----------------------|--------------------------------------------------------------------------------------------|-----------------------------|
| A.POM Joel Feliz     | Abuse: Police Officer Joel Feliz stopped the vehicle in which § 87(2)(b) was an occupant.  |                             |
| B.POM Abel Dupres    | Abuse: Police Officer Abel Dupres stopped the vehicle in which § 87(2)(b) was an occupant. |                             |
| C.POM Joel Feliz     | Abuse: Police Officer Joel Feliz questioned § 87(2)(b)                                     |                             |
| D.POM Joel Feliz     | Abuse: Police Officer Joel Feliz interfered with § 87(2)(b)'s use of a recording device.   |                             |
| E.POM Joel Feliz     | Force: Police Officer Joel Feliz used physical force against § 87(2)(b)                    |                             |
| F.POM Joel Feliz     | Abuse: Police Officer Joel Feliz frisked § 87(2)(b)                                        |                             |
| G.POM Joel Feliz     | Abuse: Police Officer Joel Feliz searched § 87(2)(b)                                       |                             |
| H.POM Abel Dupres    | Abuse: Police Officer Abel Dupres searched § 87(2)(b)                                      |                             |
| I.POM Abel Dupres    | Abuse: Police Officer Abel Dupres frisked § 87(2)(b)                                       |                             |
| J.POM Joel Feliz     | Abuse: Police Officer Joel Feliz searched the vehicle in which § 87(2)(b) was an occupant. |                             |
| K.POM Joel Feliz     | Abuse: Police Officer Joel Feliz failed to provide § 87(2)(b) with a business card.        |                             |
| L.POM Abel Dupres    | Abuse: Police Officer Abel Dupres failed to provide § 87(2)(b) with a business card.       |                             |
| § 87(4-b) § 87(2)(g) |                                                                                            |                             |
| § 87(4-b) § 87(2)(g) |                                                                                            |                             |
| § 87(4-b) § 87(2)(g) |                                                                                            |                             |

| Officer(s)           | Allegation | Investigator Recommendation |
|----------------------|------------|-----------------------------|
| § 87(4-b) § 87(2)(g) |            |                             |

### Case Summary

On December 12, 2020, § 87(2)(b) filed the following complaint via the CCRB's online website.

On December 12, 2020, at approximately 8:00 p.m., § 87(2)(b) was driving alone on Leggett Avenue and Bruckner Boulevard in the Bronx when he was pulled over by a marked NYPD vehicle operated by Police Officer Abel Dupres and Police Officer Joel Feliz, both of the 41st Precinct (**Allegations A and B: Abuse of Authority**, § 87(2)(g)). PO Feliz told § 87(2)(b) that he was stopped because of the tints on his vehicle and told § 87(2)(b) his vehicle smelled like marijuana. PO Feliz asked § 87(2)(b) questions (**Allegation C: Abuse of Authority**, § 87(2)(g)) and told § 87(2)(b) to exit the vehicle. § 87(2)(b) asked why and raised his phone in an attempt to record this incident, but PO Feliz struck the phone out of § 87(2)(b)'s hand and physically pulled § 87(2)(b) out of the vehicle (**Allegation D: Abuse of Authority**, § 87(2)(g), **Allegation E: Force**, § 87(2)(g)). PO Feliz and PO Dupres then frisked and searched § 87(2)(b) (**Allegations F-I: Abuse of Authority**, § 87(2)(g)) and PO Feliz searched § 87(2)(b)'s vehicle (**Allegation J: Abuse of Authority**, § 87(2)(g)). § 87(2)(b) was then released from the scene and not arrested or issued any summons. Neither PO Dupres nor PO Feliz provided § 87(2)(b) with a business card (**Allegations K and L: Abuse of authority**, § 87(2)(g)).

There is no body-worn camera (BWC) footage in this case, as PO Dupres and PO Feliz failed to activate their BWCs § 87(2)(g).

§ 87(4-b) § 87(2)(g)

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Joel Feliz stopped the vehicle in which § 87(2)(b) was an occupant.**

**Allegation (B) Abuse of Authority: Police Officer Abel Dupres stopped the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(b) testified (BR 01) that at the time of the incident, he made a left turn from Longwood Avenue onto Bruckner Boulevard when he observed an NYPD vehicle approach from the east side. § 87(2)(b) continued to drive down the road for about 30 seconds before the officers activated their lights, so § 87(2)(b) pulled over. § 87(2)(b) did not have marijuana at the time of the incident, nor did he consume marijuana at any point prior to the incident, nor did his car smell like marijuana. § 87(2)(b)'s vehicle was functioning properly, and § 87(2)(b) believed that he followed all traffic laws before and during this incident. The front windshield and the back window of § 87(2)(b)'s windows were tinted. § 87(2)(b) believed that his tints were compliant with New York State law regarding window tint percentages, and he had not been previously stopped by officers for them. PO Feliz approached the driver's side of § 87(2)(b)'s vehicle and PO Dupres approached the passenger's side. § 87(2)(b) lowered both windows and PO Feliz informed § 87(2)(b) that he was pulled over because of the tints on his vehicle.

The investigation received Warrant Audit results (BR 07), that show that PO Feliz conducted a search for § 87(2)(b) on December 12, 2022, at approximately 8:11 p.m., from a department mobile phone. Furthermore, in his CCRB interview, § 87(2)(b) provided the name "Durpper" and a corresponding shield number of 13626, which he obtained from seeing this information on PO Dupres' uniform. The shield number of 13626 matched with PO Dupres per the CCRB's Complaint Tracking System database. § 87(2)(g)

PO Feliz and PO Dupres, who acknowledged being partners on the date of this incident,

each testified (BR 02, BR 03) that they did not have any independent recollection of it. PO Feliz and PO Dupres did not have any recollection of encountering an individual named § 87(2)(b) or any such vehicle stop at the incident location. When presented with the Warrant Audit, both PO Felix and PO Dupres were still unable to recall the incident but acknowledged that a search for an individual's name and license plate number, like the one of § 87(2)(b) reflected in Warrant Audit results, are conducted during vehicle stops.

§ 87(2)(b) alleged that PO Feliz and PO Dupres stopped him for his window tints, but testified that he believed his tints to be complaint with New York State Law regarding tint percentages. PO Felix and PO Dupres did not recall this incident. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

**Allegation (C) Abuse of Authority: Police Officer Joel Feliz questioned § 87(2)(b)**

**Allegation (D) Abuse of Authority: Police Officer Joel Feliz interfered with § 87(2)(b)'s use of a recording device.**

**Allegation (E) Force: Police Officer Joel Feliz used physical force against § 87(2)(b)**

§ 87(2)(b) testified that after PO Feliz informed him that he was being stopped for tints, PO Feliz did not ask § 87(2)(b) for his license or registration, but instead proceeded to ask § 87(2)(b) questions that § 87(2)(b) could not recall at the time of the interview, though § 87(2)(b) described that they had nothing to do with being pulled over. PO Feliz asked § 87(2)(b) to step out of the vehicle and when § 87(2)(b) replied by asking why, PO Feliz opened the front driver's side door to § 87(2)(b)'s vehicle, which was already unlocked and partially opened by § 87(2)(b). § 87(2)(b) took his phone in an attempt to record, but PO Feliz struck the phone out of § 87(2)(b)'s hand. PO Feliz undid § 87(2)(b)'s seatbelt and pulled him out of his vehicle by grabbing § 87(2)(b)'s left hand. § 87(2)(b) did not pull back or resist in any way.

PO Feliz and PO Dupres both testified that they had no independent recollection of this incident.

§ 87(2)(b) alleged that PO Feliz questioned him, and interfered with his recording, and pulled him from his vehicle. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

**Allegation (F) Abuse of Authority: Police Officer Joel Feliz frisked § 87(2)(b)**

**Allegation (G) Abuse of Authority: Police Officer Joel Feliz searched § 87(2)(b)**

**Allegation (H) Abuse of Authority: Police Officer Abel Dupres searched § 87(2)(b)**

**Polanco.**

**Allegation (I) Abuse of Authority: Police Officer Abel Dupres frisked § 87(2)(b)**

**Allegation (J) Abuse of Authority: Police Officer Joel Feliz searched the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(b) testified that after PO Felix pulled him from his vehicle, PO Felix took § 87(2)(b)'s right hand and turned him around so that he was facing the vehicle. PO Felix proceeded to feel along § 87(2)(b)'s socks, his legs, his hands, underneath his armpits, and inside his two pants pockets. § 87(2)(b)

PO Felix instructed PO Dupres to take § 87(2)(b) towards the rear of the vehicle. PO Dupres reached inside of § 87(2)(b)'s pockets, ran his hands up and down § 87(2)(b)'s legs, and touched § 87(2)(b)'s genitals through his clothes approximately two to three times. While PO Dupres searched § 87(2)(b)'s person, PO Felix searched the cabin of § 87(2)(b)'s vehicle. § 87(2)(g)

§ 87(2)(b) observed PO Felix open his passenger side glove compartment, look underneath the front seats, and go in the backseat of his vehicle.

§ 87(2)(g), § 87(2)(a)

As discussed, PO Felix and PO Dupres testified that they did not have any independent recollection of the incident or any ensuing frisks, search, or vehicle search.

§ 87(2)(g)

**Allegation (K) Abuse of Authority: Police Officer Joel Feliz failed to provide § 87(2)(b) with a business card.**

**Allegation (L) Abuse of Authority: Police Officer Abel Dupres failed to provide § 87(2)(b) with a business card.**

§ 87(2)(b) testified that PO Felix and PO Dupres did not provide business cards during this incident.

Although PO Felix testified he had no independent recollection of the incident, he acknowledged that officers are required to provide individuals with business cards upon request. When asked if there are circumstances in which an individual who does not ask for a business card needs to be provided one, PO Feliz stated that if someone did not ask for a business card it is not mandatory to provide one.

PO Dupres testified that he had no independent recollection of the incident but acknowledged that officers are required to provide individuals with business cards upon request. When asked if there is any circumstance under which, even if an individual does not ask for a business card, he would still be required to provide it, PO Dupres stated, “I don’t think so.”

According to NYPD Administrative Code 14-174 (BR 05), during an enumerated law enforcement activity, including a frisk and search of person that does not result in a summons or arrest, an officer shall offer a business card to the person at the conclusion of such activity.

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

#### **Civilian and Officer CCRB Histories**

- § 87(2)(b) has been party of one CCRB complaint and has been named as a victim in one of allegation (BR 12):
  - § 87(2)(b)
- PO Dupres has been a member of service for five years and has been a subject in nine CCRB complaints and 40 allegations, of which two were substantiated:
  - 202002623 involved substantiated allegations of failure to provide RTKA card against PO Dupres. The Board recommended Command B Discipline and the NYPD has not yet imposed discipline. § 87(2)(g)
- PO Feliz has been a member of service for five years and has been a subject in seven CCRB complaints and 26 allegations, of which one was substantiated:
  - 202007713 involved a substantiated allegation of discourtesy word against PO Feliz. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline. § 87(2)(g)

#### **Mediation, Civil, and Criminal Histories**

- This complaint was not suitable for mediation.
- As of February 7, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad: 14

|               |                                     |                                         |                           |
|---------------|-------------------------------------|-----------------------------------------|---------------------------|
| Investigator: | <u>Francesca Chery</u><br>Signature | <u>Inv. Chery</u><br>Print Title & Name | <u>05/11/2022</u><br>Date |
|---------------|-------------------------------------|-----------------------------------------|---------------------------|

|               |                                      |                                                  |                           |
|---------------|--------------------------------------|--------------------------------------------------|---------------------------|
| Squad Leader: | <u>Cassandra Fenkel</u><br>Signature | <u>IM Cassandra Fenkel</u><br>Print Title & Name | <u>05/12/2022</u><br>Date |
|---------------|--------------------------------------|--------------------------------------------------|---------------------------|

|           |                      |                               |                 |
|-----------|----------------------|-------------------------------|-----------------|
| Reviewer: | <u></u><br>Signature | <u></u><br>Print Title & Name | <u></u><br>Date |
|-----------|----------------------|-------------------------------|-----------------|